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Author: *D. Jey Poston*

How to File a UNHRC Complaint

Understanding Human Rights, The United Nations, and How You Can Help Make A Difference

With the world in chaos right now, many of us are trying to learn how we can engage with the systems in place to have an impact, a voice, *a say in it all*.

This article is intended to help with that by providing a basic introduction to the concepts of Human Rights, the United Nations, and its role in protecting Human Rights worldwide. We'll outline an actionable way for you to make a change and better understand the 30 cornerstone human rights.

Keep reading to learn how you can voice your fears, experiences and concerns to the UN. Thank you for your interest in taking action. We can do so much more, together, than we ever could individually.

About Help Me Leave

Help Me Leave is a volunteer-run, not-for-profit platform helping people find safe pathways out of countries where their rights are under threat. We provide practical visa and relocation information, connect people with legal and community support, and advocate for fairer global migration systems.

For press inquiries or expert comment, visit www.helpmeleave.us/guides-resources

How are human rights defined?

Human rights are defined in the Universal Declaration of Human Rights, which was adopted by the United Nations in 1948. These are 30 cornerstone rights guaranteed to all people regardless of race or ethnicity, religion, or being a member of other protected social groups, such as LGBTQIA+ or children. *See the end of this article for the complete list of the 30 human rights.

What is a refugee?

The 1951 Convention on the Status of Refugees defines refugees as people who are at extreme risk of persecution or human rights violations in their country of origin and have fled to seek safety in another.

The Convention states that reasons for well-founded fear of persecution can include: "reasons of race, religion, nationality, membership of a particular social group or political opinion." Persecution is broadly defined by Article 9 of the Council Directive/2004/83/EC as "acts which are sufficiently serious to constitute a 'severe violation of basic human rights." Specific acts of persecution can include:

- physical, mental, or sexual violence;
- legal, administrative, police, and/or judicial measures which are in themselves discriminatory or are implemented in a discriminatory manner;
- prosecution or punishment which is disproportionate or discriminatory;
- denial of judicial redress resulting in a disproportionate or discriminatory punishment;
- acts of a gender or child-specific nature.

What is the United Nations Human Rights Council?

Chartered in 1945, **the United Nations (UN)** is an intergovernmental body composed of 193 member states with the goal of resolving international conflicts and protecting human rights for all members. The **United Nations Human Rights Council (UNHRC)** is an intergovernmental body within the UN system that focuses on addressing human rights violations and situations.

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What is a UNHRC Complaint?

The UNHRC's Complaint Procedure allows individuals and organizations to confidentially, but not anonymously, bring potential human rights violations and examples of persecution to the attention of the Council.

These can include specific instances of individual persecution or more national patterns and trends. For example, a clear pattern has emerged of U.S. federal agents with ICE and CBP, the Department of Justice, and the larger Trump Administration persecuting protected groups of people and violating basic human rights.

Filing a complaint is meant to be a last resort if all domestic remedies have already been exhausted, or if such remedies appear ineffective or unreasonably prolonged.

Why file a UNHRC Complaint?

Filing a UNHRC Complaint against the United States can help encourage international investigation and alteration of the US' current "Safe Country of Origin" and "Safe Third Country" statuses.

A **safe country of origin** is any country in which there are no reasonable grounds for seeking international protection because its people are thought to be equally free from acts of persecution, especially from their government.

The United States has long been considered a "safe country of origin" and a "safe third country" by many countries. However, with the recent escalation of violence against protestors and civilians, the United States is **no longer safe** for many protected groups. Being removed from these lists would allow persecuted U.S. citizens to seek international asylum without their cases being assumed to be unfounded.

How can I file a UNHRC Complaint?

If you believe your rights or the rights of someone you know have been violated, you can file a complaint to the UNHRC by following these steps and using the letter template provided below.

1. Go online to https://complaints.ohchr.org/
2. Select the "Human Rights Council" option or the "Special Procedures of the Human Rights Council" option
3. Scroll to the bottom of the page and select "Make your complaint to [body you selected]"
4. Provide a password to revisit your complaint
5. Select "Human Rights Violation"
6. Select between 1 and 5 issues on the provided list
7. Select the appropriate consent option
8. Select the appropriate victim category
9. Go through the disclosures
10. Input any identifying information and customize the following template to reflect your concerns
11. Name the perpetrators
12. Submit complaint

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HRC Complaint Template

To the United Nations Human Rights Council:

[Share any identifying information you are comfortable with, for instance: I am a civilian living in the United States]

I am [*feelings of fear or concern*] for the survival of my human rights [of the rights of the person or protected group you are filing the complaint on behalf of] living in the United States, and believe that the United States should be investigated for human rights violations.

[*Insert examples of persecution and upload any corroborating evidence you may have*]

[*Examples of the actions and items of concern that you could highlight in the complaint include:*

- *Federal agents are killing observers and protestors, taking people from their jobs, schools, and homes, then detaining them in inhuman conditions to wait for deportation or indictment.*
- *The Trump Administration has rolled back protections for the LGBTQIA+ community and all POC/ethnic minorities in the areas of housing, work, and medical care.*
- *The US Supreme Court has not stopped the Trump Administration's actions and has even barred lower federal courts from attempting to stop federal or executive actions. There seems to be no legal remedy for the increasing persecution of a growing population of people living in the United States*.

I would like to request an investigation into the safety and protection of human rights in the United States, and that any applicable ramifications be taken if the United States is found to be engaging in human rights violations.

Sincerely,

[Your Name]

List of the 30 Protected Human Rights

1. *All humans are born free and equal*
2. *Everyone is entitled to all of the rights and freedoms free from discrimination based on race, color, sex, language, religion, political or other opinions, national or social origin, property, birth, or another status*
3. *The right to life, liberty, and security of person*
4. *The right to be free from slavery*
5. *Freedom from torture or inhumane treatment*
6. *Right to equal treatment by law*
7. *Right to equal access to law*
8. *Right to be treated fairly by the Court*
9. *Free from unjust detainment*
10. *Right to fair trial*
11. *Right to being considered innocent until proven guilty*
12. *Right to privacy*
13. *Freedom of movement and residence*
14. *Right to asylum*
15. *Right to nationality*
16. *Right to marry and have family*
17. *Right to own things*
18. *Freedom of opinion and expression*
19. *Right to assemble*
20. *Right to democracy*
21. *Right to social security*
22. *Freedom of thought and religion*
23. *Right to work*
24. *Right to rest and holiday*
25. *Right to social service*
26. *Right to education*
27. *Right of culture and art*
28. *Right to freedom around the world*
29. *Subject to law*
30. *Human rights cannot be taken away*

References

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